

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

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UNIQUE SMITH,

Plaintiff,

-against-

Index No.
Plaintiff designates
NEW YORK County
as the place of trial

THE CITY OF NEW YORK, LIEUTENANT IAN RULE,
Tax ID No: 919661 Individually And In His Official
Capacity, P.O. CRAIG SKIORSKI, Tax ID No. 949913,
Individually, And In His Official Capacity and "JOHN
DOE" #1-10, Individually and in their Official Capacities,
(the name "John Doe" being fictitious, as the true
names are presently unknown),

Defendants.

SUMMONS

The basis of this
venue is
Location of
Occurrence

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TO THE ABOVE NAMED DEFENDANTS:

YOU ARE HEREBY SUMMONED TO ANSWER the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance, on the Plaintiff's Attorney(s) within 20 days after the service of this summons, exclusive of the date of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: May 5, 2017

Jon L. Norinsberg, Esq.
Attorney for Plaintiff
225 Broadway, Suite 2700
New York, New York 10007
(212) 791-5396

Defendant(s)' Address:

The City of New York
100 Church Street
New York, NY 10007

P.O. Craig Skiorski
233 West 10th Street
New York, NY 10014

Lieutenant Ian Rule
One Police Plaza
New York, NY 10007

"John Doe" #1-10
One Police Plaza
New York, NY 10007

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

-----X
UNIQUE SMITH,

Plaintiff,

COMPLAINT

-against-

THE CITY OF NEW YORK, LIEUTENANT IAN RULE,
Tax ID No: 919661 Individually And In His Official
Capacity, P.O. CRAIG SKIORSKI, Tax ID No. 949913,
Individually And In His Official Capacity and "JOHN
DOE" #1-10, Individually and in their Official Capacities,
(the name "John Doe" being fictitious, as the true names
are presently unknown),

Defendants.
-----X

Plaintiff, by his attorney, JON L. NORINSBERG, ESQ., complaining of the
Defendants, respectfully alleges, upon information and belief, as follows:

1. Plaintiff UNIQUE SMITH was at all relevant times and still is a resident of the
County of Kings, in the City and State of New York.

2. Defendant CITY OF NEW YORK was at all relevant times and still is a
municipal corporation duly organized and existing under and by virtue of the laws of the State of
New York.

3. At all times hereinafter mentioned, the defendant CITY OF NEW YORK
maintained a police department whose members were employees of the defendant CITY OF
NEW YORK.

4. Upon information and belief, and at all times hereinafter mentioned, defendants,
LIEUTENANT IAN RULE, P.O. CRAIG SKIORSKI and "JOHN DOE" #1 through #10, (the
name "John Doe" being fictitious, as the true names are presently unknown), were New York

City Police Officers acting in the course of their employment with defendant CITY OF NEW YORK, in furtherance of the business of the defendant CITY OF NEW YORK, and under color of State law.

5. On or about May 10, 2014, at approximately 12:15 A.M., plaintiff was lawfully present in front of 24 Jones Street, in the County, City, and State of New York.

6. Thereafter, plaintiff was arrested by defendant police officers, and charged with, *inter alia*, Attempted Burglary in the First Degree, Criminal Possession of a Weapon in the Second Degree, Attempted Robbery in the First Degree, Criminal Possession of a Weapon in the Third Degree, Criminal Trespass in the First Degree, Conspiracy in the Fourth Degree.

7. Plaintiff Unique Smith at no point in time on May 10, 2014 *ever* committed any crime, much less any burglary or robbery.

8. There was no physical evidence connecting plaintiff UNIQUE SMITH to any crimes.

9. There was no forensic evidence connecting plaintiff UNIQUE SMITH to any crimes.

10. There was no DNA evidence connecting plaintiff UNIQUE SMITH to any crimes.

11. In connection with plaintiff UNIQUE SMITH'S unlawful arrest, defendant police officers provided false and misleading information to the District Attorney's office.

12. Further, defendants withheld from prosecutors material exculpatory information which would have resulted in the exoneration of plaintiff UNIQUE SMITH.

13. As a result of defendants' unlawful actions, plaintiff spent over two (2) years in jail, from May 10, 2014 through the end of his criminal trial on July 1, 2016.

14. In total, plaintiff UNIQUE SMITH spent over two (2) years on Rikers Island.

15. On July 1, 2016, plaintiff UNIQUE SMITH was acquitted by a jury of all charges against him.

AS AND FOR A FIRST CAUSE OF ACTION
(VIOLATION OF CIVIL RIGHTS PURSUANT TO 42 USC §1983)

16. Plaintiff UNIQUE SMITH repeats and realleges each and every allegation set forth in paragraphs "1" through "15", as if more fully set forth at length herein.

17. All of the aforementioned acts of defendants, their agents, servants and employees, were carried out under the color of law.

18. All of the aforementioned acts deprived Plaintiff UNIQUE SMITH of the rights, privileges and immunities guaranteed to citizens of the United States by the First, Fourth, Fifth, Eighth and Fourteenth Amendments to the Constitution of the United States of America, and in violation of 42 U.S.C. § 1983.

19. The acts complained of were carried out by the aforementioned individual defendants in their capacities as police officers and/or corrections officials, with all the actual and/or apparent authority attendant thereto.

20. The acts complained of were carried out by the aforementioned individual defendants in their capacities as police officers, pursuant to the customs, usages, practices, procedures, and the rules of the City of New York, the New York City Police Department, all under the supervision of ranking officers of said department.

21. Defendants, collectively and individually, while acting under color of state law, engaged in conduct which constituted a custom, usage, practice, procedure or rule of his/her respective municipality/authority, which is forbidden by the Constitution of the United States.

22. The acts complained of deprived plaintiff UNIQUE SMITH of his right:

A. Not to be deprived of liberty without due process of law;

- B. To be free from seizure and arrest not based upon probable cause;
- C. To be free from searches not based upon probable cause;
- D. To be free from unwarranted and malicious criminal prosecution;
- E. To receive equal protection under the law.
- F. To be free from excessive force.

23. As a result of the foregoing, Plaintiff UNIQUE SMITH has been damaged in the amount of TEN MILLION DOLLARS (\$10,000,000.00) and is further entitled to punitive damages in the sum of TEN MILLION DOLLARS (\$10,000,000.00).

AS AND FOR A SECOND CAUSE OF ACTION
(FALSE ARREST UNDER 42 USC §1983)

24. Plaintiff UNIQUE SMITH repeats and realleges each and every allegation in paragraphs "1" through "23" of this Complaint as if the same were more fully set forth at length herein.

25. As a result of the aforesaid conduct by defendants, plaintiff UNIQUE SMITH was subjected to an illegal, improper and false arrest by the defendants and taken into custody and caused to be falsely imprisoned, detained, confined, and incarcerated by the defendants.

26. The aforesaid actions by the defendants constituted a deprivation of the plaintiff's rights, privileges and/or immunities secured by the Constitution and laws of the United States of America.

27. As a result of the foregoing, Plaintiff UNIQUE SMITH has been damaged in the amount of TEN MILLION DOLLARS (\$10,000,000.00) and is further entitled to punitive damages in the sum of TEN MILLION DOLLARS (\$10,000,000.00).

AS AND FOR A THIRD CLAIM FOR RELIEF
(MALICIOUS PROSECUTION UNDER 42 U.S.C. § 1983)

28. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs numbered “1” through “27” with the same force and effect as if fully set forth herein.

29. Defendants misrepresented and falsified evidence before the District Attorney.

30. Defendants did not make a complete and full statement of facts to the District Attorney.

31. Defendants withheld exculpatory evidence from the District Attorney.

32. Defendants were directly and actively involved in the initiation of criminal proceedings against plaintiff UNIQUE SMITH.

33. Defendants lacked probable cause to initiate criminal proceedings against plaintiff UNIQUE SMITH.

34. Defendants acted with malice in initiating criminal proceedings against plaintiff UNIQUE SMITH.

35. Defendants were directly and actively involved in the continuation of criminal proceedings against plaintiff UNIQUE SMITH.

36. Defendants lacked probable cause to continue criminal proceedings against Plaintiff UNIQUE SMITH.

37. Defendants acted with malice in continuing criminal proceedings against Plaintiff UNIQUE SMITH.

38. Defendants misrepresented and falsified evidence throughout all phases of the criminal proceeding.

39. As a result of the foregoing, Plaintiff UNIQUE SMITH has been damaged in the amount of TEN MILLION DOLLARS (\$10,000,000.00) and is further entitled to punitive damages in the sum of TEN MILLION DOLLARS (\$10,000,000.00).

AS AND FOR A FOURTH CLAIM FOR RELIEF
(DENIAL OF CONSTITUTIONAL RIGHT TO FAIR TRIAL
UNDER 42 U.S.C. § 1983)

40. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs "1" through "39" as if the same were more fully set forth at length herein.

41. Defendants created false evidence against plaintiff UNIQUE SMITH.

42. Defendants forwarded false evidence and false information to prosecutors in the Bornx County District Attorney's Office.

43. In creating false evidence against plaintiff UNIQUE SMITH, in forwarding false evidence and information to prosecutors, and in providing false and misleading testimony, defendants violated plaintiff's constitutional right to a fair trial under the Due Process Clause of the Fifth and Fourteenth Amendments of the United States Constitution.

44. As a result of the foregoing, plaintiff's liberty was restricted for an extended period of time, and he was put in fear for his safety, was humiliated and subjected to handcuffing, and other physical restraints, without probable cause.

45. As a result of the foregoing, Plaintiff UNIQUE SMITH has been damaged in the amount of TEN MILLION DOLLARS (\$10,000,000.00) and is further entitled to punitive damages in the sum of TEN MILLION DOLLARS (\$10,000,000.00).

AS AND FOR A FIFTH CLAIM FOR RELIEF
(MALICIOUS ABUSE OF PROCESS UNDER 42 U.S.C. § 1983)

46. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs numbered "1" through "45" with the same force and effect as if fully set forth herein.

47. The aforementioned individual defendants issued legal process to place plaintiff UNIQUE SMITH under arrest.

48. The aforementioned individual defendants arrest plaintiff UNIQUE SMITH in order to obtain a collateral objective outside the legitimate ends of the legal process.

49. The aforementioned individual defendants acted with intent to do harm to plaintiff UNIQUE SMITH, without excuse or justification.

50. As a result of the foregoing, plaintiff UNIQUE SMITH sustained, *inter alia*, mental anguish, shock, fright, apprehension, embarrassment, humiliation, and deprivation of his constitutional rights.

51. As a result of the foregoing, Plaintiff UNIQUE SMITH has been damaged in the amount of TEN MILLION DOLLARS (\$10,000,000.00) and is further entitled to punitive damages in the sum of TEN MILLION DOLLARS (\$10,000,000.00).

AS AND FOR A SIXTH CAUSE OF ACTION
(MUNICIPAL LIABILITY UNDER 42 USC §1983)

52. Plaintiff UNIQUE SMITH repeats, reiterates and realleges each and every allegation contained in paragraphs "1" through "51" as if the same were more fully set forth at length herein.

53. Defendants and P.O.'s "JOHN DOE" #1-10 arrested and incarcerated plaintiff in the absence of any evidence of criminal wrongdoing, notwithstanding their knowledge that said

arrest and incarceration would jeopardize plaintiff's liberty, well-being, safety and constitutional rights.

54. The acts complained of were carried out by the aforementioned individual defendants in their capacities as police officers and officials, with all the actual and/or apparent authority attendant thereto.

55. The acts complained of were carried out by the aforementioned individual defendants in their capacities as police officers and officials pursuant to the customs, policies, usages, practices, procedures, and rules of the City of New York and the New York City Police Department, all under the supervision of ranking officers of said department.

56. The foregoing customs, policies, usages, practices, procedures and rules of the City of New York and the New York City Police Department constituted a deliberate indifference to the safety, well-being and constitutional rights of plaintiffs.

57. The foregoing customs, policies, usages, practices, procedures and rules of the City of New York and the New York City Police Department were the direct and proximate cause of the constitutional violations suffered by plaintiffs as alleged herein.

58. The foregoing customs, policies, usages, practices, procedures and rules of the City of New York and the New York City Police Department were the moving force behind the constitutional violations suffered by plaintiffs as alleged herein.

59. As a result of the foregoing customs, policies, usages, practices, procedures and rules of the City of New York and the New York City Police Department, plaintiff UNIQUE SMITH was falsely arrested and incarcerated for over two (2) years.

60. Defendants, collectively and individually, while acting under color of state law, were directly and actively involved in violating the constitutional rights of plaintiff UNIQUE SMITH.

61. Defendants, collectively and individually, while acting under color of state law, acquiesced in a pattern of unconstitutional conduct by subordinate police officers, and were directly responsible for the violation of plaintiffs' constitutional rights.

62. All of the foregoing acts by defendants deprived plaintiff UNIQUE SMITH of federally protected rights, including, but not limited to, the right:

- A. Not to be deprived of liberty without due process of law;
- B. To be free from seizure and arrest not based upon probable cause;
- C. To be free from unwarranted and malicious criminal prosecution;
- D. Not to have cruel and unusual punishment imposed upon them; and
- E. To receive equal protection under the law.
- F. To be free from excessive force.

63. As a result of the foregoing, Plaintiff UNIQUE SMITH has been damaged in the amount of TEN MILLION DOLLARS (\$10,000,000.00) and is further entitled to punitive damages in the sum of TEN MILLION DOLLARS (\$10,000,000.00).

WHEREFORE, plaintiff UNIQUE SMITH demands judgment against the defendants as follows:

- (1) On all causes of action, compensatory damages in the amount of \$10,000,000.00; and
- (2) On all causes of action, punitive damages in the amount of \$10,000,000.00.
- (3) Costs and disbursements of this action, including attorney's fees, and for such other and further relief as to this Court may deem just and proper.

Dated: New York, New York
May 5, 2017



JON L. NORINSBERG
Attorney for Plaintiff

225 Broadway, Suite 2700
New York, New York 10007
(212) 791-5396

